

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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HAROLD HAYES,

Plaintiff,

-against-

THE CITY OF NEW YORK,
DET. DAVID COWAN (Shield #06258)
DET. MICHAEL ROBBERT (Shield #29015)
DET. ANDREW DUGUID (Shield #00568)
DET. ANGELO DIMITRAKAKIS (Shield #30939)
DET. JOEL POLICHRON (Shield #24564)
SERGEANT ALAN LAM (Shield #00632) and
SERGEANT JAMES CAHILL (Shield #00220)

Defendants.
-----X

11 CV 04676 (NGG)(RER)

AMENDED COMPLAINT

JURY DEMAND

Plaintiff, by his attorney, Philip Akakwam, Esq., complaining of the defendants, The City of New York, Det. David Cowan (Shield #06258), Det. Michael Robbert (Shield #29015), Det. Andrew Duguid (Shield #00568), Det. Angelo Dimitrakakis (Shield #30939), Det. Joel Polichron (Shield #24564), Sergeant Alan Lam (Shield #00632), and Sergeant James Cahill (Shield #00220), (collectively “defendants”), upon information and belief alleges as follows:

INTRODUCTION

1. This is an action at law to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985].

2. Plaintiff seeks monetary damages for: the false arrest, false imprisonment and detention of Plaintiff, Harold Hayes, and for deprivation of medical treatment, and otherwise, for the

violation of Plaintiff's federally guaranteed constitutional and civil rights. Plaintiff seeks whatever other relief is appropriate and necessary in order to serve the interest of justice and assure that his remedy is full and complete.

JURISDICTION

3. The jurisdiction of this Court is invoked pursuant to and under 28 U.S.C. Sections 1331 and 1343[3] and [4] in conjunction with the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and under the Fourth and Fourteenth Amendments to the United States Constitution.

4. Jurisdiction is also invoked pursuant to and under 28 U.S.C. Section 1367, entitled Supplemental Pendent Party Jurisdiction.

5. Plaintiff requests that the Court invoke pendent jurisdiction over any and all claims arising under the laws and Constitution of the State of New York.

6. The State law claims have a common nucleus of operative facts with the federally based claims and they arise out of the same transaction(s) and occurrence(s) giving rise to the Plaintiff's federally based claims and causes of action.

7. Plaintiff also invokes the jurisdiction of this Court in conjunction with the Declaratory Judgment Act, 28 U.S.C. Sections 2201, et seq., this being an action in which Plaintiff, while seeking monetary damages, also seeks declaratory and injunctive relief if such is deemed necessary and desirable and in the interest of justice in order to provide Plaintiff with a full and complete remedy for the violation of her rights.

PARTIES

8. Plaintiff, a 62 years old black male, is a resident of the City of New York, County of Kings and State of New York.

9. The City of New York is a municipal entity existing under the laws and Constitution of the State of New York and was the employer of the defendant police officers through its Police Department - New York City Police Department- and the actions of the police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

10. At all times herein, individual defendants Police Officers, Det. David Cowan (Shield #06258), Det. Michael Robbert (Shield #29015), Det. Andrew Duguid (Shield #00568), Det. Angelo Dimitrakakis (Shield #30939), Det. Joel Polichron (Shield #24564), Sergeant Alan Lam (Shield #00632), and Sergeant James Cahill (Shield #00220), were employed as police officers of the City of New York, State of New York, and were acting under the color of their official capacity and their acts were performed under color of the statutes and ordinances of the City of New York and the State of New York. The defendant Police Officers were the servants, agents, and employees of their co-defendant, the City of New York. Notwithstanding the wrongful and illegal nature of their acts and conduct as hereinafter described, they were taken in and during the course of their duties and functions as New York City Police Officers and incidental to the otherwise lawful performance of the same.

11. All conditions precedent to filing of this action have been complied with; on July 15, 2011, within ninety days after the claim alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the Supreme Court. The said Notice of Claim was assigned claim number 2011PI026472.

12. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

13. This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTS COMMON TO ALL CAUSES OF ACTION

14. On or about June 13, 2011, at approximately 5:30 p.m., defendant Police Officers were on duty and were acting within the scope of their authority as police officers for defendant City of New York and in furtherance of the business of the City of New York.

15. On the date and time aforesaid, plaintiff was sitting and playing dominoes with friends in front of 1782 Broadway, Brooklyn, Kings County, New York when about 12 police officers in plain clothes arrived and arrested plaintiff with two other people with whom he was playing the domino games.

16. When the officers arrived, they told plaintiff and the others playing with him to stand up and when they complied, the officers proceeded to search plaintiff and the others there on the sidewalk and in the view of the public passing by on the street.

17. When plaintiff asked the officers the reason for his arrest, they claimed there was a warrant for his arrest but that they left the warrant in their vehicle. There was actually no warrant for plaintiff's arrest.

18. Plaintiff was put in handcuffs and left standing on the street while the officers went into 1782 Broadway to search various apartments therein.

19. Then plaintiff was placed in a van with the other two people arrested with him and they were driven around the city of Brooklyn for more than five hours with stops at various other

locations where police made other arrests.

20. After driving around for hours, the officers made a quick stop at the 73rd precinct to drop off one female arrestee, after which the officer drove off again with plaintiff and other arrestees in the vehicle.

21. After about five hours of driving plaintiff around in their van, plaintiff was brought to the 73rd police precinct where he was searched, fingerprinted, photographed and then thrown into a cell room with about four other arrestees.

22. At the precinct plaintiff was told that he was arrested for allegedly selling viagra to an undercover officer. Plaintiff denied possessing or selling viagra or anything else to anyone.

23. Plaintiff remained in the cell at the precinct for hours before he was taken to the Central Booking where he was again searched, processed and thrown into a cell.

24. Plaintiff was held in the cell at Central Booking until about 12 midnight on June 14, 2011 when he was arraigned.

25. The foregoing is part of a pattern of harassment, intimidation, humiliation, false arrests and imprisonment and abuse of the criminal process to which plaintiff has been subjected by officers of the 73rd police precinct.

26. On or about March 23, 2011, plaintiff was arrested while he was playing dominoes inside a pool room located at 1782 Broadway, Brooklyn, New York.

27. On said date, while plaintiff and some friends were inside the pool room, some police officers in plain clothes came into the place and arrested him with a number of other people.

28. Plaintiff was searched by the officers. He had only his keys and cell phone in his pockets.

29. Plaintiff was cuffed and thereafter transported to the 73rd police precinct where he was fingerprinted, photographed and thrown into cell.

30. Plaintiff remained in the police cell for more than six hours before he was issued a Desk Appearance Ticket and then released. He was charged with criminal possession of a controlled substance even though no such substance had been found in his possession.

31. Plaintiff is constantly subjected to harassment, intimidation and illegal searches and threats by police officers of the City of New York, particularly officers from the 73rd police precinct. He has been stopped on the streets on several occasions without any justifiable reason and parted down by plain-clothed officers.

32. In or about April 2011, while plaintiff was chatting with some friends on a street corner near a grocery store, two police officers in plain clothes stopped by them. The officers came out of their car and subjected plaintiff and the other two people to a body search on the street in the view of the public. After searching plaintiff and his friends, the officers left them and drove away.

33. At the time of the above arrests, detention and illegal searches, plaintiff was lawfully at the locations of the incidents and he did not engage in any conduct which would justify a police intrusion on his constitutional rights.

34. Before and at the time plaintiff was unlawfully arrested, seized, and searched by the police, he was not engaging in any suspicious or unlawful conduct. Therefore, his arrest without a warrant was completely unjustified, in that it was made without reasonable suspicion or probable cause.

35. Plaintiff suffered physical injuries, including injury to his wrists and shoulder. And

plaintiff suffered emotional distress, mental anguish and psychological trauma as a consequence of the assault and battery, and as a result of his frequent unlawful and unjustified arrests and imprisonment by defendant officers.

36. The Plaintiff suffered violations of his federally guaranteed constitutional and civil rights including rights guaranteed to him under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

37. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, for the violations of the constitutional rights of citizens, thereby causing police officers including defendants in this case, to engage in unlawful conduct.

38. Defendant City of New York, as a matter of policy and practice, has with deliberate indifference failed to properly sanction or discipline police officers including the defendants in this case, who are aware of and subsequently conceal violations of the constitutional rights of citizens by other police officers thereby causing and encouraging police officers including defendants in this case, to engage in unlawful conduct

39. The actions taken against plaintiff by the defendant Officers herein were also propelled by a policy and practice of the City of New York which promotes an “ends justifies the means” philosophy of combating crime which causes officers to arrest individuals, particularly blacks, without probable cause and to subject such individuals to false criminal charges, to excessive force, assault and battery. The said policy and practice falls disproportionately on persons of color.

40. The actions of the defendants, acting under color of State law, deprived plaintiff of his

rights, privileges and immunities under the laws and constitution of the United States; in particular, the rights to be secure in his person and property, the right to due process, and the right to be free from false arrest, false imprisonment, malicious prosecution and abuse of process.

41. The policies and practices complained of herein also violate the rights of Plaintiff under the Constitution and laws of the City and State of New York.

42. The actions and conduct of the Officers and the policies and practices of the City of New York were negligent and the proximate cause of damages to the Plaintiff.

43. The Defendant Officers acted together and in concert sanctioning and ratifying and otherwise condoning the wrongful actions being taken by each of the defendant Officers in a collective manner and fashion.

44. The Plaintiff has no other adequate remedy at law but for this action.

AND AS FOR A FIRST CAUSE OF ACTION

45. Plaintiff reiterates paragraphs 1 through 44 and incorporates such by reference herein.

46. Defendant Police Officers “John and Jane Does 1-12” violated Plaintiff’s right to be free from false arrest and false imprisonment guaranteed to him under the Fourth and Fourteenth Amendments to the United States Constitution, and Plaintiff’s right not to be denied his liberty without due process of law, secured to him under the Fifth and Fourteenth Amendments to the Constitution. By violating plaintiff’s constitutional rights under color of State Law, Defendant Police Officers violated the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

47. As a result of plaintiff’s false arrest and imprisonment, plaintiff has been caused to suffer humiliation, bodily pain, mental anguish, embarrassment, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, medical expenses and has been

otherwise damaged.

AND AS FOR A SECOND CAUSE OF ACTION

48. Plaintiff reiterates paragraphs 1 through 47 and incorporates such by reference herein.

49. The Plaintiff was subjected to malicious prosecution in that he was arrested and charged, without probable cause, and subjected to criminal prosecution as a consequence thereof in violation of his rights under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

50. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

AND AS FOR A THIRD CAUSE OF ACTION

51. Plaintiff reiterates paragraphs 1 through 50 and incorporates such by reference herein.

52. Defendant Police Officers falsely arrested and imprisoned plaintiff in violation of the Common Law.

53. The false arrest and imprisonment of plaintiff was carried out without a valid warrant, without plaintiff's consent, and without probable cause or reasonable suspicion.

54. Defendant Police Officers acted with malice and reckless and intentional disregard for Plaintiff's rights under common law when they arrested and imprisoned Plaintiff because they were acting on allegations they knew to be false. Therefore, said Defendant Police Officers are guilty of egregious and gross misconduct toward plaintiff.

55. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

AND AS FOR A FOURTH CAUSE OF ACTION

56. Plaintiff reiterates paragraphs 1 through 55 and incorporates such by reference herein.

57. By arresting, detaining and imprisoning plaintiff, without justification, probable cause or reasonable suspicion, and assaulting him, the Defendant Officers, deprived plaintiff of rights, remedies, privileges and immunities guaranteed to every New Yorker by Article 1, Section 12 of the New York State Constitution.

58. In addition, the defendant officers conspired among themselves to deprive plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York State Constitution, and took numerous overt steps in furtherance of such conspiracy, as set forth above.

59. The Defendant Officers acted under pretense and color of state law and in their individual and official capacities and within the scope of their respective employment as NYPD Officers. Such acts by Defendant Officers were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive the plaintiff of his constitutional rights secured by Article 1, Section 12 of the New York State Constitution.

60. Defendants, their officers, attorneys, agents, servants and employees were responsible for deprivation of Plaintiff's State Constitutional rights. Defendant City, as employer of each of the defendant officers, is responsible for their wrongdoing under the common law doctrine of respondeat superior.

61. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damage herein before stated.

AND AS FOR A FIFTH CAUSE OF ACTION

(Monell/42 U.S.C. Section 1983: Claim Against Defendant City of New York)

62. Plaintiff reiterates paragraphs 1 through 61 and incorporates such by reference herein.

63. The foregoing violations of plaintiff's federal constitutional rights and resultant injuries were directly, foreseeably and proximately caused by conduct, chargeable to defendant City of New York, amounting to deliberate indifference to the constitutional rights of persons, including Plaintiff, who are investigated, arrested, or prosecuted for alleged criminal activities.

64. Defendant City of New York failed to provide proper training and/or failed to insure that the training provided was adequately understood in regard to the following tasks which police officers commonly perform:

- (a) The determination of probable cause to make an arrest;
- (b) The duty to take into account the totality of the circumstances in determining the existence of probable cause to make an arrest;
- (c) The circumstances under which investigative detentions may lawfully occur and the manner in which they may lawfully be executed;
- (d) The scope of authority to search provided by a search warrant;
- (e) The very limited circumstances under which a home may be entered without a warrant;
- (f) The very limited circumstances under which a warrantless search may be carried out.

65. Defendant City of New York maintained unwritten customs and practices which permitted or condoned the unlawful searches of persons, the unlawful searches of homes, the

unlawful seizure of persons, subjecting citizens to disparately harsh law enforcement practices on account of their race. These customs and practices are demonstrated by the failure of said defendant to properly investigate numerous complaints from citizens alleging such police misconduct and by their failure to take adequate remedial action where misconduct has occurred.

66. These customs and practices are further demonstrated by defendant's practice of promoting officers who were the subject of judicial finding of unconstitutional conduct, who were the subject of an inordinate number of citizen complaints and lawsuits alleging misconduct, and/or whose conduct evidenced racial discrimination against African-American residents of the city.

67. Defendant City of New York acted intentionally, wilfully and/or with deliberate indifference to the rights of plaintiff. The acts and omissions of said defendant described above were a direct cause of the injuries suffered by plaintiff.

68. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices and/or customs (including the failure to properly instruct, train, supervise and/or discipline employees with regard thereto) were implemented or tolerated by policymaking officials for the Defendant City of New York, including but not limited to, the New York City Police Commissioner, who knew or should have known that such policies, procedures, regulations, practices and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases;

69. The policymaking officials at NYPD know or ought to have known that such issues that regularly arise in the investigation and prosecution of criminal cases either present police employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of police employees mishandling such situations and making the wrong

choice.

70. The aforementioned policymaking officials knew that the wrong choice by police officers concerning determination of probable cause will frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and cause them constitutional injury.

71. The aforementioned policymaking officials had the knowledge and the notice alleged in the preceding paragraphs based upon, among other circumstances, numerous civil lawsuits, some of which resulted in substantial civil settlements, credibly alleging that police officers had conducted searches or arrests without probable cause.

72. Said notice is also based upon the inherent obviousness of the need to train, supervise and discipline police officers in their aforementioned constitutional obligations to counteract the pressures on officers and the powerful incentives they have to close cases and to obtain arrests and convictions.

73. During all times material to this Complaint, the Defendant City and its policy making officials owed a duty to the plaintiff and the public at large, which they knowingly and intentionally breached, or to which they were deliberately indifferent, to implement policies, procedures, customs, practices, training and discipline sufficient to prevent or deter conduct of their employees violating the aforementioned constitutional rights of innocent members of the public including plaintiff.

74. As part of its policies, customs and practices, Defendant City has failed to take proper corrective and punitive actions against overreaching police officers thus creating the impression that crime reduction is paramount and triumphs over constitutional rights in all circumstances.

75. As a result of inadequate training of police officers on the practical meaning of

probable cause for arrest, officers frequently detain and/or arrest citizens based on their hunches, inklings, or mere suspicion and without reasonable or probable cause.

76. The aforesaid policies, procedures, regulations, practices and/or customs of Defendant City and its police department, the NYPD, were collectively and individually a substantial factor in bringing about the aforesaid violations by the individual police defendants of Plaintiff's rights under the Constitution and laws of the United States.

77. By virtue of the foregoing, Defendant City of New York is liable for having substantially caused the foregoing violations of Plaintiff's constitutional rights and his constitutional injuries.

AND AS FOR A SIXTH CAUSE OF ACTION

(Negligent Hiring, Training and Supervision Under State Law; Defendant City)

78. Plaintiff reiterates paragraphs 1 through 77 and incorporates such by reference herein.

79. By virtue of the foregoing, defendant City of New York is liable to plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, and discipline its agents, servants and/or employees employed by the NYPD with regard to their aforementioned duties.

80. As a direct and proximate result of the acts and omissions of the defendants described in this Complaint, plaintiff suffered a significant loss of his liberty and violation of his federal constitutional rights, was prevented from attending to his necessary affairs and suffered and continues to suffer significant emotional pain, distress, humiliation and embarrassment.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

- i. For compensatory damages in an amount to be determined at trial - against all

defendants, jointly and severally;

- ii. For punitive damages against the individual defendants in an amount to be determined at trial;
- iii. For reasonable attorneys' fees, together with costs and disbursements of this action, pursuant to 42 U.S.C. § 1988 and to the inherent powers of this Court;
- iv. For pre-judgment interest as allowed by law; and
- v. For such other and further relief as the court deems just and proper.

Dated: Brooklyn, New York
February 3, 2012

LAW OFFICE OF PHILIP AKAKWAM

By: /s/Philip Akakwam
Philip Akakwam, Esq. (PA-8294)
Attorneys for the Plaintiff
303 Livingston Street, 2FL
Brooklyn, N.Y. 11217
(718) 858-2488

To: Andrew Wenzel, Esq. (VIA ECF)
Assistant Corporation Counsel
City of New York Law Department
100 Church Street
New York, N.Y. 10007